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Court

S C (A J&K)

Date

1989-08-15

Appeal No.

CRIMINAL APPEALS NOS. 11/MIRPUR, 16/MIRPUR AND 21/MIRPUR OF 1988, 2/MIRPUR AND 3/MIRPUR OF 1989,

Judge

RAJA MUHAMMAD KJIURSHID KHAN, CJ. AND SARDAR SAID MUHAMMAD KHAN

Parties

FEROZE DIN AND 2 OTHERS (APPELLANTS) VERSUS RAJA ABDUL RAUF KHAN AND ANOTHER (RESPONDENTS)

Lawyers

MIRZA MUHAMMAD NISAR, ADDL. A. G. FOR RESPONDENT (IN CRIMINAL APPEAL NO. 16 OF 1988).

Statutes

AZAD JAMMU AND KASHMIR ISLAMIC PENAL LAWS ENFORCEMENT ACT (IX OF 1974) - SS. 5 AND 15 PENAL CODE (XLV OF 1860) - SS.302, 307, 147, 148 AND 149 AZAD JAMMU AND KASHMIR ISLAMIC PENAL LAWS ENFORCEMENT ACT (IX OF 1974) - SS. 5 AND 15 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 497(5) PENAL CODE (XLV OF 1860) - SS.302, 307, 147, 148 AND 149 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 497 PENAL CODE (XLV OF 1860) - SS.302, 307, 147, 148 AND 149 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 497

Judgment

RAJA MUHAMMAD KHURSHID KHAN, C.J.- This order will dispose of all the four above-captioned appeals. They are moved against the judgments of the Shariat Court, dated 25-5-1988, 16-8-1987; and 12-1-1989 and are the outcome of the same occurrence.

2. The unfortunate incident which was registered at Police Station Khuiratta, vide F.I.R.. No. 84 of 1987, arises in the following way:- 19-11-1987, fresh polls for the election to the membership of District Council, Kotli, from Electoral area of Union Council Seri were in progress at Polling Stations Anderla Ktehra. Two Polling Booths, one for the men and the other for women, were set up for the purpose in Boys and the Girls High Schools respectively. At 12-30 noon, Sub-Inspector Muhammad Tariq, S H O Police station Khuiratta, made a written report to the Officer Incharge of the aforesaid police station. The report was to the effect that he was on duty at the Gils' High School Anderla Ktehra at women Polling Booth where at about 9-45 a.m. having attracted by the reports of firing and hue and cry from male Polling Station he reached the spot and found Sakhi Muhammad son of Ditta and Shamim son of Ismail lying dead by fire-arms injuries. Karim, Muhammad Din, Shams Din, Alif ~ Din, Sharaf Din Muhammad Azim, Shah Muhammad, Fayyaz, Muhammad Ismail, Hussain Muhammad, Feroze Din, Muhammad Rashid, Muhammad p f UUKC; luhami"ad Aslam, Muhammad Hussain, Siraj Din, Abdul Karim and ateh Muhammad, the report entered, were noticed in injured conditions It was further stated that Muhammad Jamil, Investigating Head Constable, informed ini that altercation had started between Muhammad Rafique Nayyer a contesting candidate for election to District Council membership and Imtiaz, the o mg Agent of his opponent candidate where an objection to the casting of invalid votes was raised. Thereafter, a quarrel ensued between the supporters of the rival groups outside the polling booth. During the quarrel the use of Lathis and stones was made and eight/nine unknown persons also started firing at the supporters of Muhammad Rafique Nayyer with the intention to kill them. As a re.s., 1 tje finng Sakhl Muhammad and Muhammad Shamim died on the spot while Muhammad Karim, Fayyaz, Muhammad Rashid and few other persons KTCroi- fr.ieV0lu.s , "->ured- He also made another report on the same day (Report o.8j) in which the complainant party was, prima facie, shown as aggressor.

, p Pn th,f firSt rport' a case under actions 5 and 15 of the Azad Jammu and Kashmir Penal Laws (Enforcement) Act, 1974, read with sections 307, 147 148 and 149 of the Penal Code was registered at Police Station Khuiratta, vide F.I.R.. No. 84 of 1987.

On the next day i.e. 20th of November, 1987, one Baboo Feroze Din made an application to the Superintendent of Police Kotli, wherein 26 persons were entered as accused of murder and attempt to murder. The application entered that out of the accused named therein 23 persons, at the behest of the remaining three, armed themselves with fire-arms and Lathis, formed an unlawful assembly at the Polling Booth at Boys' High School Anderla Ktehra and thereafter with the common object of forcibly casting invalid votes and killing the voters of Muhammad Rafique Nayyer, launched an attack on the supporters of the said candidate, started firing, pelted stones and struck the voters with Lathis. The report also entered that Muhammad Taj, IChizar Hayat, Jhalla and Amratullah accused had fatally injured Sakhi Muhammad, Abdul Karim,

Muhammad Shamim and Taj Muhammad, respectively by gunshots while Muhammad Ilyas and Ishratullah, accused, had also caused fire-arm injuries to Fayyaz and Muhammad Asghar. Riasat and Rehmatullah, accused, had fired at and injured him (Baboo Feroze).

The application was sent by the Superintendent of Police Kotli, to S.H.O. Khuiratta to proceed under law. The Deputy Superintendnet of Police was required to conduct the investigation of the

case.

Apprehending their arrest in the above case, 21 persons applied for prearrest bail to the District Criminal Court, Kotli, who allowed the concession of bail to all but later on while disposing of the matter taken up for confirmation of bail, vide order, dated 20-1-1988, bails granted to four persons, namely, Raja Abdul Rauf, Muhammad Asghar Azad, Raja Abdul Hamid and Raja Nisar were confirmed and bail allowed to other abovesaid persons was cancelled resulting in the rejection of their bail application.

Nineteen accused persons were, thus, arrested on 18-3-1988. They applied for bail to the District Criminal Court Kotli which vide order, dated

14-5-1988, allowed bail to eleven persons (accused), namely Faryad Ali Khan, Amratullah Khan, Mazhar Iqbal, Muhammad Aftab, Ajaib Khan, Hidayatullah son of Asmatullah Khan, Hidayatullah son of Rahim Dad Khan, Sajjad Khan, Muhammad Yaqub, Muhammad Ilyas and Muhammad Ashraf, while bail was refused to remaining eight persons, namely, Muhammad Riaz, Riasat Khan, Muhammad Imtiaz, Muhammad Ilyas, Khizar Hayat, Muhammad Taj, Rehmatullah and Murawwat Khan. It is to be noticed here that the bail was allowed to eleven accused persons by the District Criminal Court at two stages.

Aggrieved by the aforesaid orders of the District Criminal Court, Kotli --first passed on 20-1-1988 and the second on 14-5-1988 - the relatives of the deceased appealed to the Shariat Court (Appeals Nos. 9 and 26 of 1988) for cancellation of bail allowed to the accused under the aforesaid orders while the eight accused persons who were refused bail by the District Criminal Court vide its order, dated 14-5-1988, also appealed to the Shariat Court (Appeal No. 25 of 1988) for their release on bail.

As said earlier, the Shariat Court, vide a consolidated order, dated 12-1-1989, disposed of two matters. Out of eight accused persons, who were refused bail by the District Criminal Court, four, namely, Muhammad Riaz, Muhamamd Imtiaz, Rehmatullah and Murawwat were allowed bail but declined to allow bail to the remaining four accused, namely, Khizar Hayat, Muhammad Taj Khan, Riasat Khan and Muhammad Ilyas.

About Murawwat it was said that since Assad son of Muhammad Taj had forgiven Murawwat Khan for the offences committed in killing his father, Murawwat can only be convicted and sentenced to pay Diyyat and so bail had rightly been allowed to him vide Shariat Court's order earlier passed on 16-8-1988. By way of two separate orders, dated 25-5-1988 and 16-8-1988, the Shariat Court disposed of the other two matters entitled Abdul Rauf and another v. The State and Feroze Din and others v. Raja Abdul Rauf Khan and another.

3. It may be stated here that vide Shariat Court's order, dated 25-8-1988, appeal with regard to the involvement of Raja Abdul Rauf and Muhammad Asghar Azad for the reason that they were not included in the list of accused in the complete challan for want of prosecution sanction by the Government, was dismissed.

4. The above survey would provide background of the present appeals which have been moved to question the validity of various orders passed by the Shariat Court.

The picture that emerges thus is this that four persons, namely, Riasat Khan, Muhammad Imtiaz, Khizar Hayat and Muhammad Taj, who were refused bail, have come up in appeal to question the validity of the bail refusing order of the Shariat Court (Criminal Appeal No.2 of 1989) while Feroze Din and others have appealed (Criminal Appeal No. 3 of 1989) to question the legality of

the bail granting order of sixteen persons, namely, Muhammad Imtiaz, Rehmatullah, Muhammad Riaz, Faryad Ali Khan, Amratullah Khan, Mazhar Iqbal, Ajaib IQian, Hidayatullah Khan, Muhammad Ashraf, Muhammad Ilyas, Aftab Ahmed, Sajjad Khan, Muhammad Yaqoob Khan, Hidayatullah Khan, Raja Nisar Ahmed Khan and Raja Abdul Hamid Khan. By way of a third appeal (Criminal Appeal No. 11 of 1988), this very Feroze Din has called in question the order passed by the Shariat Court on 25-5-1988 whereby Raja Abdul Rauf and Muhammad Asghar Azad were let off on bail as the Government refused to grant sanction for their prosecution in consequence of which their inclusion in the challan as focused was declined by the police. Fourth appeal (Criminal Appeal No. 16 of 1988) has been moved by Muhammad Asghar Azad, whose application under sections 561-A and 439, Cr.P.C. for quashment of the order against him and Raja Abdul Rauf in challan case pending in the District Criminal Court under section 5/15 of the Islamic Penal Laws (Enforcement) Act, 1974, was refused by the Shariat Court on 16-8-1988.

5. The position, thus, now is that bail allowed to Raja Abdul Rauf Muhammad Asghar Azad, Raja Abdul Hamid and Raja Nisar is being challenged "th,!!! Court on the complainant side by way of two appeals (Criminal Appeal No. 11 of 1988 and Criminal Appeal No. 3 of 1989). In these appeals, in the first instance, bail granting order of eleven accused made by the District Criminal Court, namely, Faryad Ali Khan, Amratullah Khan, Mazhar Iqbal, Muhammad Aftab, Ajaib Khan, Hidayatullah son of Asmatullah Khan Hidayatullah son of arum Dad Khan, Sajjad Khan, Muhammad Yaqoob, Muhammad Ilyas and Muhammad Ashraf on 14-5-1988 and bail allowed to three accused, namely, Muhammad Imtiaz, Rehmatullah and Muhammad Riaz by the impugned judgment of the Shariat Court are being questioned and sought to be avoided.

6. It may be mentioned here that the learned District Criminal Court has come to the conclusion that eight accused (out of them four are let off by the Shariat Court) are vicariously liable for the offence of murder and on this score bail was refused to them. As regards other accused, the District Criminal Court is of the opinion that since they are liable for their individual acts, on the basis of the evidence on record, they are entitled to the concession of bail. Bail thus was allowed to them.

7 The learned counsel for the appellant has contended that it is not possible to differentiate between the cases of the various accused regarding vicarious liability as has been done by the District Criminal Court. According to the learned counsel either all of the accused are to be held responsible with vicarious liability or each is to be saddled for his individual acts. We are of the view that it is neither proper nor possible at this stage to give a definite finding on the point. Suffice it to say that we see no reason to differ with finding of the Shariat Court that prima facie, at this stage, the principle of vicarious liability, in view of the circumstances of the case, does not justify to refuse bail to accused-respondents. Thus, the case of the accused persons, for the purposes of their bail is to be adjudged in context of their individual acts alleged to have been committed by them.

8. Let us now lay our hand on the cases. In the first instance, we propose to take up Appeal No.11 of 1988 entitled Feroze Din and others v.

Raja Abdul Rauf and another. This appeal seeks quashment of the order, dated 25-5-1988. The order decides that since sanction for prosecution in respect of Raja Abdul Rauf and Muhammad Asghar Azad has not been accorded by the Government for their prosecution, the appeal to their extent stands dismissed as they cannot legally be taken as accused in the case. The order also stipulates that the above position is even agreed upon by the learned counsel for the parties.

9. Mr. Muhamamd Yunus Surakhvi, the learned counsel for Feroze Din, appellant, has not pressed this appeal. He agreed that since no sanction for prosecution has been accorded by the

Government for the prosecution of Raja

Abdul Rauf and Muhammad Asghar Azad, the above order passed by the Shariat Court is all legal and needs no interference. He stated that without sanction, the prosecution against Raja Abdul Rauf and Muhammad Asghar Azad was not tenable and the Shariat Court had committed no error in disallowing the appeal. In the circumstances, this appeal, having no substance, stands dismissed.

10. Let us now deal with Appeal No. 16 of 1988 captioned Muhammad Asghar Azad and another v. The State. In this appeal, Muhammad Asghar Azad, against whom the Government refused to accord sanction for prosecution, seeks vacation of the order made by the Shariat Court in his petition under sections 561-A and 439, Code of Criminal Procedure which sought quashment of the proceedings against him in the challan case pending in the District Criminal Court under section 5/15 of the Azad Jammu and Kashmir Islamic Penal Laws (Enforcement) Act, 1974.

Ch. Muhammad Taj, the learned counsel for Muhammad Asghar Azad, has not pressed this appeal and prayed for its dismissal.

11. We, for our own satisfaction, have also seen critically the impugned judgment alongwith the record. Since the Government declined to sanction prosecution against Muhammad Asghar Azad and another, the matter comes to an end. Without sanction, prosecution is never considered as permissive. Besides, the perusal of the impugned order of the District Criminal Court does not show that it had issued summons for the attendance of the appellant and Raja Abdul Rauf as accused persons; rather the proceedings in the case, on the incomplete challan put up by the prosecution, show that the notice for their attendance before the Court was issued to all those persons who were granted bail during the investigation of the case which included the appellants also.

12. On careful reading of the impugned order it cannot be said that the trial Court had issued summons to the appellants for their attendance in the Court as accused persons. On the contrary it appears that all were summoned to appear before the Court on the next date because they were also amongst the persons accused in F.I.R.. and were granted bail by the Court during the investigation of the case.

13. In the above circumstances, the trial Court was directed by the Shariat Court to dispose of the application, dated 21-6-1988 of the appellants which required adjudication with regard to the jurisdiction or lack of jurisdiction of the Court to take cognizance of the case against them. The order of the Shariat Court, thus, we feel, suffers from no legal defect railing for our interference. For the foregoing reasons this appeal also fails and is refused hereby.

14. This now brings us to look into the third appeal captioned Feroze Din and others v. Muhammad Imtiaz and 15 others (Appeal No. 3 of 1989).

Mr. Muhammad Yunus Surakhvi, the learned counsel for the appellants, has contended that in the circumstances of the case, there appear reasonable grounds to believe that the respondents in this appeal, namely, Muhammad Imtiaz, Rehmatullah, Muhammad Riaz, Faryad Ali Khan, Amratullah Khan, Mazhar Iqbal, Ajaib Khan, Hidayatullah Khan, Muhammad Ashraf, Muhammad Ilyas, Aftab Ahmed, Sajjad Khan, Muhammad Yaqoob Khan, Hidayatullah Khan, Raja Nisar Ahmed Khan and Raja Abdul Hamid Khan, have committed the offence of murder or attempt to commit murder and the discretion exercised by the lower Courts (Shariat Court and District Criminal Court) in releasing them on bail is not in accordance with the principles governing bail matters. In elaboration, he contended that since the accused party had with them weapons of

offence concealed, it would be legitimate to say that they have opened fire with the common object of murder and attempt to murder. In his view, the learned Judge in the Shariat Court and District Criminal Court erroneously held that element of common object was lacking in this case and every one of the accused, prima facie, was responsible for his individual act.

15. As against this, Ch. Muhammad Taj, the learned counsel for the respondents, argued that the lower Courts have exercised the discretion in a legal fashion in extending liberty of bail to the respondents-accused which cannot be interfered with unless it can be shown that discretion has been exercised perversely. He submitted that even from the facts as put forth by the prosecution, it transpires that it was, prima facie, a case of sudden fight and at present it would be too much to say that the respondents-accused had the intention, object or motive to murder or kill any of the persons from the complainant party. In his view, it was rightly held by the lower Courts that it is a case of further inquiry. He also contended that a counter-F.I.R.. was lodged by one Lai in which it was alleged that the complainant party had mounted "an armed attack on the supporters of Muhammad Taj, deceased, a candidate for election for the membership of District Council, as a result of which one Muhammad Taj (not the contesting candidate) was killed by gunshots fired by Feroze Din, P.W., and some of his other companions were injured. On the above premises, it was argued that it still remains to be determined as to which of the parties was aggressor. In this view of the matter, he also seeks bail for Khizar Hayat and three others, namely, Muhammad Taj Khan, Riasat Khan and Muhammad Ilyas.

16. We have given our dispassionate thought to the above contentions of the learned counsel for the parties. The first question which, in our view, needs consideration is as to whether the facts made out, prima facie, attract the principle of vicarious liability in the case. If the answer to the above question is in affirmative, then bail will be prohibited to the respondents-accused as the offences, they are charged with, are punishable with death or imprisonment for life. But if the answer to the above question is in negative, then the case of each of the accused at present is required to be determined on the basis of their individual involvement in the occurrence.

17. The Shariat Court has held that the principle of vicarious liability is not, prima facie, attracted in the case with the result that each of the accused involved is liable for his own individual act during the occurrence. On the basis of the view formed, the Shariat Court or the District Criminal Court allowed bail at different stages to the respondents in this case.

18. Let us see as to whether the Shariat Court or the District Criminal Court have exercised their discretion in allowing bail to the respondents in a legal fashion or the orders suffer from an infirmity glaring enough or floating on the face, to call for our interference.

In the report submitted by the police under section 173, Cr.P.C. The case of the prosecution itself is:-

(i) that at the time of occurrence polls were taking place for election to the membership of District Council, Kotli, at the male polling booth of polling station Anderla Ktehra, set up at the Boys' High School building, where the supporters of the rival candidates, namely, Muhammad Rafique Nayyer, P.W., and Muhammad Taj, accused, had gathered for the purpose of casting their votes;

(ii) that inside the said polling booth, an altercation took place between Muhammad Rafique Nayyer and Muhammad Imtiaz accused who was acting as Polling Agent of Muhammad Taj, accused, on the objection over the casting of invalid votes;

(iii) that Muhammad Imtiaz, accused, and some others made an attack on Muhammad Rafique Nayyer and started beating him;

(iv) that when the news of the above beating reached outside the polling booth, the supporters of Muhammad Rafique Nayyer, who had gathered there for casting their votes, after breaking open the doors of the said polling booth, released Muhammad Rafique Nayyer from the clutches of the assailants and took him outside the booth premises;

(v) that thereafter, a quarrel ensued between the respective supporters of the aforementioned contesting candidates and they started hurling stones on each other; and

(vi) that it was at this stage that the accused resorted to indiscriminate firing etc. on the supporters of Muhammad Rafique Nayyer which act injured most of them resulting in the death of four persons.

19. It would, thus, appear that even from the prosecution story it cannot be said at the present stage with certainty that the accused had pre-planned the commission of the offence of murder as is alleged by the prosecution. The element of common object, till further inquiry, is not apparent. At present, prima facie, it can be at the most inferred that their presence on the spot at the time of occurrence was for the purpose of casting their votes. The mere fact that some of them carried with them fire-arms and Lathis, prima facie, we believe, would not necessarily lead to the inference, till further inquiry to be made by the trial Court, that they had formed an unlawful assembly with the common object of killing the contesting candidate, Muhammad Rafique Nayyer and his supporters. The possibility that the accused had taken the weapon of offence to meet any unhealthy situation is yet to be cleared. Till that time we think bail was rightly allowed by the Shariat Court.

20. In the above circumstances, it cannot be ruled out till further inquiry that in view of the situation prevailing, the accused persons might have come armed there with a view to meet any contingency that might have arisen during the polls. According to the evidence, the quarrel, it appears, ensued between the respective supporters of the contesting candidates on the dispute over the casting of an invalid vote by one of the supporters of Muhammad Taj, accused. The incident flared up and thus the accused are alleged to have caused injuries to some of the supporters of Muhammad Rafique Nayyer with fire-arms, Lathies and sharp-edged weapons, in the result of which four persons lost their lives while many others were injured.

21. If we give a dispassionate thought, at present, it is difficult for us to say with certainty that the accused had formed an unlawful assembly with the common object of killing the supporters of the opponent or it was in furtherance of the common object that they had fired at them causing the death of four persons and injuring some others making each constructively liable for the offence of murder. In the circumstances, the legal disability envisaged by the provisions of section 497, Cr.P.C. for allowing bail to the respondents is not attracted.

Our conclusion, therefore, is that the learned Judge in the Shariat Court has committed no apparent error in saying that the vicarious liability of the accused for the commission of the offence of murder still remains to be determined by the trial Court and till such time the case of every one of them is to be adjudged on the basis of the individual acts committed by them during the occurrence.

we examine the case in the light of the individual criminal acts alleged to have been committed by the respondents, we find that Muhammad Riaz, Muhammad Imtiaz and Rehmatullah, respondents, who were refused bail by the District Criminal Court on the ground that they are vicariously liable for the commission of offence, have rightly been allowed bail by the Shariat Court as reasonable grounds for believing them to be connected with the commission of offence

punishable with death or imprisonment for life, do not exist in their case at the present moment, rather further inquiry is needed in the matter.

23. To have clarity, let us deal with their case in some details. The accusation against Muhammad Riaz, respondent, is that he inflicted injuries on the persons of Shah Muhammad and Ch. Keroo with stick and knife respectively. It is also alleged against him that he caused injuries to Muhammad Rafique, P.W., by firing a shot from his pistol. In the circumstances the truth of the above allegations, as held by the Shariat Court, needs further inquiry. It does not appeal to one's mind that Muhammad Riaz, at the time, was carrying three different types of weapons, namely, stick, knife and pistol and also used them one after another for injuring three different persons. This is to be still explained. Therefore, it still needs inquiry as to why he had chosen to strike the above-named P.Ws. not with one weapon but with different ones. It also needs ascertainment as to whether he has caused injuries to the victims with a view to kill them as none of them had received any injury on the vital parts of their body.

On the above premises, our view is that at present no reasonable grounds are available for believing that Muhammad Riaz had made murderous attack on the life of anyone of the injured persons. Bail to him was, therefore, rightly allowed by the Shariat Court.

24. Next we take up the case of Muhammad Imtiaz and Rehmatullah, respondents-accused. Mr. Muhammad Yunus Surakhvi, the learned counsel, has no serious objection if bail granting order with regard to Muhammad Riaz is maintained. However, he offered bitter criticism with regard to the bail allowed to Muhammad Imtiaz. The allegation against Muhammad Imtiaz is that he had injured Sharaf Din and Siraj Din, P.Ws., by gun fire. The prosecution case is that he was polling agent of Muhammad Taj accused, at the polling booth and altercation between him and Muhammad Rafique Nayyer, P.W. had taken place over an objection by the latter to the casting of invalid votes in favour of the contesting candidate, Muhammad Taj, accused. The further case is that on this altercation he, alongwith some other persons, started beating the said prosecution witness. This prima facie, suggests that at that time this accused also was empty handed or had no intention to kill the contesting candidate, Muhammad Rafique Nayyer, or any of his supporters as he did not use any fire-arm even if he had any but contended himself with catching hold of the said contesting candidate and beating him with hands only.

25. Looking from another angle, being a polling agent of a contesting candidate, he was obviously inside the polling booth where in the ordinary circumstances, he was not expected to carry any fire-arm with him. It is also important to note that the fire-arm injuries alleged to have been caused by him to Sharaf Din and Siraj Din, though dangerous, were not on the vital parts of their bodies; therefore, it still remains to be seen as to whether or not the same were caused with the intention to kill them. Thus, the discretion exercised has no illegality to be disturbed.

26. On the basis of the above, we think that discretion exercised by the Shariat Court in holding that reasonable grounds at present are not made out for believing that the above accused person has committed the offence of murder or attempt to commit murder is neither perverse nor fanciful and the case needs further inquiry. Therefore, since the charge against him needs further inquiry, his case also falls outside the prohibition clause relating to bail under sections 497 and 498, Cr.P.C. and bail to him has rightly been allowed by the Shariat Court.

27. So far as the case of Rehmatullah, accused-respondent, is concerned, we are of the view that allegations against him also need further inquiry. The evidence against him, prima facie, does not furnish reasonable grounds for believing that he has committed an offence in which bail is prohibited under the law. He is accused of inflicting injuries with stick on the persons of Sharaf Din and Ch. Keroo and also injuring Feroze Din, P.W., by firing at him from his gun. So far his

part in causing injuries to Sharaf Din and Ch. Keroo with stick is concerned, it cannot be said at this stage that he did so with a view to kill them. Such an intention ordinarily is not to be inferred when a person makes an assault at a person by a stick. Besides, the injuries are of simple nature not likely to cause death of a person. The allegation that he had also fired at and injured Muhammad Feroze P.W. also cannot at this stage be taken as a truth on its face value in view of the circumstances of the case. It requires further inquiry to confirm its correctness by the trial Court because it still needs to be settled as to why he used stick for injuring Sharaf Din and Ch. Keroo, P.Ws., while he thought it proper to fire a shot from his gun at Feroze Din, P.W. Besides, the gun alleged to have been used by him during the course of occurrence has not been recovered from his possession. In a nutshell the discretion cannot be coloured as fanciful in allowing bail to him.

28. Even otherwise, as held by the Shariat Court, Feroze Din, P.W.'s substantial allegation seems to be that Riasat and Muhammad Asghar, accused, had fired at and injured him and it was only at the fag-end of his statement that he had mentioned that this accused-appellant had also injured him by gunfire. Feroze Din, P.W., had received only three fire-arm injuries which could possibly be caused by gunshot of one or two persons. We agree with the learned counsel, Mr. Muhammad Yunus Surakhvi, that in allowing bail to this accused consideration to the effect:-

"Muhammad Asghar, accused who is alleged to have also fired a gunshot at Muhammad Feroze, P.W., had already been granted bail by the trial Court and thus there appears no reasonable ground not to mete out the same treatment to Rehmatullah, accused-appellant against whom the accusation is identical to the one made against Muhammad Asghar accused. The injuries sustained by Muhammad Feroze, P.W. are not of serious or dangerous nature and he was discharged from the hospital only 2 days after his admission there on the day of occurrence."

had wrongly weighed with the learned Judge in the Shariat Court to allow bail to Rehmatullah. Muhammad Asghar, accused, is absconding and injuries on the person of Muhammad Feroze are also not of simple nature and it was wrongly said that Muhammad Feroze was discharged from the hospital two days after the admission. He was discharged practically one month after his admission in the hospital. However, since the other reasons advanced by the Shariat Court for bail cannot be construed as perverse or fanciful and the reasons itself can furnish a valid ground for bail, we do not feel advised to disturb the bail granting order of Rehmatullah even.

30. The above survey would show that prima facie reasons are available in the present case for allowing bail to the above three persons. The Shariat Court, thus, in our view, has not exercised its discretion in allowing bail to them in a perverse or violative way and the order, thus, needs no interference.

31. It is settled law that normally the Supreme Court does not interfere in the discretion exercised by the Courts below in allowing or disallowing bail unless the discretion is shown to be capricious or against the interest of justice or established principles of administration of criminal justice. It is also to be noted that in deciding bail matters ordinarily the merits of the case in depth are not gone into as held in *M. Khalid Saigol v. The State* P L D 1961 Lah. 717 and *Chiragh Din v. The State* P L D 1967 SC 340.

In view of the above, we are convinced that bail to four accused persons, namely, Muhammad Imtiaz, Rehmatullah, Muhammad Riaz and Muhammad Asghar has rightly been allowed.

32. Now remains the case of respondents Nos. 4 to 16 namely, Faryad Ali Khan, Amratullah Khan, Mazhar Iqbal, Ajaib Khan, Hidayatullah Khan, Muhammad Ilyas, Aftab Ahmed, Sajjad Khan, Muhammad Yaqoob Khan, Hidayatullah Khan, Raja Nisar Ahmed Khan and Raja Abdul

Hamid Khan. Mr. Muhammad Yunus Surakhvi, the learned counsel for the appellants, has not seriously contested the bail granting orders with regard to these persons. However, we have, for our own satisfaction, gone through the record and we feel that bail has rightly been allowed to them by the District Criminal Court and discretion exercised in allowing bail to them does not suffer from any legal infirmity.

For the above stated reasons, we have come to the conclusion that Criminal Appeal No.3 of 1989 merits no consideration. The same, therefore, stands refused.

33. Now remains the case of Khizar Hayat, Riasat Khan, Muhammad Ilyas and Muhammad Taj, (Criminal Appeal No. 2 of 1989). It may be observed that the District Criminal Court refused bail to eight accused persons including the above four, namely, Muhammad Riaz, Riasat Khan, Muhammad Imtiaz, Muhammad Ilyas, Khizar Hayat, Muhammad Taj, Rehmatullah and Murawwat Khan. These eight accused went up in appeal to challenge the bail refusing order before the Shariat Court vide Criminal Appeal No. 25 of 1988. As said earlier, the Shariat Court allowed bail to four accused except Riasat Khan, Muhammad Ilyas, Khizar Hayat and Muhammad Taj. It would, thus, appear that out of 26 persons mentioned in the report, made by Baboo Feroze Din, except Khizar Hayat, Muhammad Taj, Riasat Khan and Muhammad Ilyas, the remaining accused are bailed out either by the District Criminal Court or by the Shariat Court.

34. Here it may be observed that during the course of arguments, it was vehemently argued by Ch. Muhammad Taj, the learned counsel for the appellants (in judicial lock-up) and the respondents who are released on bail, that the statements under section 161, Cr.P.C., against all of them have been recorded after 27th of January, 1989 and, therefore, till convincing explanation is not coming forth to explain away this delay the appellants, namely, Khizar Hayat, Muhammad Taj Khan, Riasat Khan and Muhammad Ilyas, are to be released on bail.

35. We regret, we are unable to agree with the learned counsel. This argument is not available to the learned counsel at this stage, because it is the exclusive function of the trial Court to see as to whether the delay, if any, is satisfactorily explained and if it is not explained satisfactorily, how would it affect the merits of the case. Likewise, the argument of Ch. Taj to the effect that the report made by Baboo Feroze Din cannot be construed to be a F.I.R.. and as such is to be excluded from consideration outright, does not cut much ice. The argument is out of place to be considered. It is too early in the day to express ourselves as to whether this report can be termed to be a F.I.R.. because any opinion at this stage, one way or the other, would affect and influence the mind of the trial Court. Therefore, we leave it exclusively for the trial Court to decide this argument after conclusion of the trial.

36. So far the theory of two versions is concerned, the version of the accused has not been believed by Superintendent of Police, Sardar Shafi.

Therefore, the theory of two versions is only a theory which has no substantial evidence in support at the present moment. Besides, merely two versions have never been considered sufficient ground to allow bail especially in murder cases. The trial Court, however, would reach to its independent view in the complaint moved on behalf of the complainant side.

37. In view of the above, the appellants in Appeal No. 2 of 1989, captioned Khizar Hayat and others v. The State, namely, Khizar Hayat, Muhammad Taj

Khan, Riasat Khan and Muhammad Ilyas, cannot be released on bail at this stage. There exist reasonable grounds to believe that *prima facie* they are connected with the commission of offence of murder or attempt to commit murder. It is in the evidence under section 161, Cr.P.C.

that Riasat Khan had fired a gunshot on Feroze Din, P.W., and injured him. Muhammad Ilyas is alleged to have caused gunshot injury on the vital part of the body of Muhammad Fayyaz, P.W., and also struck a blow with the butt of his gun on the face of Shamim, deceased. Khizar Hayat is alleged to have killed Abdul Karim deceased while Muhammad Taj, accused-appellant, is alleged to have fired a fatal shot from his gun at Sakhi Muhammad, deceased. The allegation gets support from some of the prosecution witnesses. The weapons of offence, i.e., guns have also been recovered from them.

38. In the circumstances, we are of the view that there is prima facie involvement of the appellants in the commission of offence of murder or attempt to commit murder and the learned Judge in the Shariat Court has rightly exercised the discretion in disallowing bail to them. No argument could satisfy us as to in what way the discretion is perverse or violative of the settled norms of law. However, these appellants- accused, when some of the prosecution witnesses are examined, are at liberty to move a bail application afresh, if they feel that the evidence recorded does not prima facie connect them with the commission of the offence as is disclosed in the statements of the witnesses under section 161,

more Part*ng w>th the case, we would like to observe that we have also looked into the report made by our brother Mr. Justice Sher Zaman Chaudhry a learned Judge of the High Court, in respect of this very occurrence. We feel that the report has no direct bearing on the bail matter. It would not, therefore, be proper for us to express ourselves on the merits of the report. Why and in what circumstances the Officers of the District, who were suspended on the basis of the a orcsaid report, were re-instated, is a question which is also alien to the controversy in hand and since the relevant record has not been received to show as to why these officers were re-instated, we refrain to express any opinion on this aspect too.

F°r the above stated reasons, all the four appeals captioned above stand disallowed.

ORDER OF THE COURT

The judgment shall be sent to the. Deputy Registrar, Branch Registry, Mirpur, who shall announce the same after giving notices to the concerned.

N.H.Q./262/SCA Order accordingly.

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1191814

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